In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00066-CR

EMMANUEL NNANNA CHUKWUJEKWU, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 9th District Court
Montgomery County, Texas
Trial Court No. 25-05-07694

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice van Cleef

MEMORANDUM OPINION

Emmanuel Nnanna Chukwujekwu entered an open plea of guilty to evading arrest or detention with a motor vehicle, a third-degree felony. *See* TEX. PENAL CODE ANN. § 38.04 (Supp.). After a punishment hearing, the trial court entered a deadly weapon finding, found the State's habitual offender-punishment allegations true, and sentenced Chukwujekwu to thirty years' imprisonment.

In his sole issue on appeal, Chukwujekwu argues that the evidence was legally insufficient to sustain the trial court's deadly weapon finding.[1] Because we find that Chukwujekwu used his motor vehicle in a manner capable of causing serious bodily injury or death, we overrule his point of error and affirm the trial court's judgment.

I. Factual and Procedural Background

The State alleged in its indictment that Chukwujekwu intentionally fled from a peace officer attempting to lawfully arrest or detain him and that "during the commission of the offense or immediate flight therefrom, [Chukwujekwu] did then and there use or exhibit a deadly weapon, to-wit: a motor vehicle." Even though Chukwujekwu's written-plea paperwork shows that he pled true to the underlying offense, the appellate record confirms that he pled not true to the deadly weapon finding and elected to have that issue tried to the bench.

At the evidentiary hearing, Clemente Duenas, an officer with the Shenandoah Police Department, testified that he was on patrol on a Saturday when he observed a white BMW that

[1]Originally appealed to the Ninth Court of Appeals, this case was transferred to this Court by the Texas Supreme Court pursuant to its docket equalization efforts. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.). We follow the precedent of the Ninth Court of Appeals in deciding the issues presented. *See* TEX. R. APP. P. 41.3.

was reported as stolen being driven southbound on Highway 45 by a person later determined to be Chukwujekwu and asked for backup prior to making any traffic stop. Duenas testified that the traffic stop was initiated in "medium, moderate, not too heavy, not bumper to bumper" traffic conditions after adequate backup from several law enforcement agencies were in place.

According to Duenas, Chukwujekwu "picked up speed" and led officers on a "high rate[] of speed" chase spanning two counties. According to Duenas, even though the posted speed limit was sixty-five miles per hour, Chukwujekwu was traveling "[eighty] miles an hour whenever it first started, up to [ninety], up to [Duenas says was] 100 miles an hour in the HOV [(high-occupancy vehicle)] lane." Duenas testified that as Chukwujekwu sped up, he began weaving in and out of traffic, drove in a manner Duenas described as "unsafe," and made "an evasive maneuver . . . to enter the HOV lane to continue to flee" after passing many vehicles. Duenas testified that he witnessed Chukwujekwu "pick up his cell phone and . . . begin either texting or making a phone call" while driving down the highway. Duenas said that, by that time during the pursuit, traffic was "beginning to get more dense."

The chase came to an end when an officer on foot deployed spike strips in the HOV lane that punctured the stolen BMW's tires. According to Duenas, the deputy deploying the spike strips "physically had to hop, to jump over the barrier," "throw out the vehicle spikes," and "immediately jump[] back over the barrier," to avoid being hurt since "there was no cover for him before he threw the spikes."

Duenas's body-camera and dash-camera footage caught the chase, involving at least three marked patrol units with their lights and sirens activated, and it was played for the trial court.

The dash-camera footage shows that Chukwujekwu weaved in and out of the four lanes of southbound traffic without using turn signals on several occasions while evading arrest. In addition to causing traffic to scatter, the chase caused several vehicles to pull over to the shoulder of the highway. During the high-speed chase, Chukwujekwu came behind a silver sports-utility vehicle (SUV), which was following another white vehicle at a safe distance. Chukwujekwu passed the SUV on the right side, sped up, and crossed back over in front of the SUV and right behind the white vehicle it was travelling behind before entering the far-left lane of travel. The recording shows that Chukwujekwu narrowly missed the silver SUV, and Duenas testified that Chukwujekwu used the motor vehicle in a manner that put others in danger of serious bodily injury or death. The dash-camera footage also corroborated Duenas's testimony about how the deputy deployed the spike strips by jumping over the barrier and on the shoulder of Chukwujekwu's lane of travel as Chukwujekwu was approaching him.

"[G]iven the high rate of speed and the number of cars that were on the road at the time," the trial court entered a deadly weapon finding.

II. Legally Sufficient Evidence Supported the Trial Court's Deadly Weapon Finding

By statutory definition, a deadly weapon is "anything that in the manner of its use or intended use is capable of causing death or serious bodily injury." TEX. PENAL CODE ANN. § 1.07(a)(17)(B) (Supp.). Thus, a motor vehicle may be found to have been used or exhibited as a deadly weapon "if it is used in a manner that is capable of causing death or serious bodily injury." *Brister v. State*, 449 S.W.3d 490, 494 (Tex. Crim. App. 2014). In his sole point of error on appeal, Chukwujekwu argues that the trial court erred by making an affirmative deadly

weapon finding because he did not drive on the wrong side of the road, "did not lose control of the motor vehicle he was driving, and no other motor vehicle or person on the road showed signs of imminent danger of a collision."

In evaluating Chukwujekwu's complaint, "we must decide whether, in viewing the evidence in the light most favorable to the verdict, a rational trier of fact could have found beyond a reasonable doubt that [Chukwujekwu] used or exhibited [the motor vehicle] as a deadly weapon when he was [evading arrest]." *Sierra v. State*, 280 S.W.3d 250, 255 (Tex. Crim. App. 2009) (citing *Cates v. State*, 102 S.W.3d 735, 738 (Tex. Crim. App. 2003)). In reviewing this legal-sufficiency complaint, we note that "[t]he factfinder is the sole judge of the witnesses' credibility and weight to be given to their testimony." *Clark v. State*, 573 S.W.3d 367, 372 (Tex. App.—Beaumont 2019, no pet.) (citing *Tate v. State*, 500 S.W.3d 410, 413 (Tex. Crim. App. 2016)). "Accordingly, we are required to defer to the factfinder's determinations of weight and credibility of the witnesses." *Id.* (citing *Brooks v. State*, 323 S.W.3d 893, 899 (Tex. Crim. App. 2010)). "Our duty, as a reviewing court, is not to reweigh the evidence from reading a cold record but to act as a 'due process safeguard ensuring only the rationality of the factfinder.'" *Id.* (quoting *Brister v. State*, 414 S.W.3d 336, 342 (Tex. App.—Beaumont 2013, pet. granted) (*Brister I*), *aff'd*, 449 S.W.3d 490 (Tex. Crim. App. 2014) (*Brister II*) (quoting *Williams v. State*, 937 S.W.2d 479, 483 (Tex. Crim. App. 1996))).

A deadly weapon finding requires evidence that "(1) the object was something that in the manner of its use or intended use was capable of causing death or serious bodily injury; (2) the weapon was used or exhibited during the transaction from which the felony conviction was

obtained; and (3) other people were actually endangered." *Id.* (quoting *Brister I*, 414 S.W.3d at 342). Here, it is the third category that is at issue.

"While the danger to motorists must be actual and not merely hypothetical, it does not require pursuing officers or other motorists to be in a zone of danger, take evasive action or require a collision." *Id.* Rather, "the State can satisfy its burden by proving the defendant used the vehicle he was driving in a way that made the vehicle capable of causing a serious bodily injury or death to others." *Jackson v. State*, No. 09-18-00256-CR, 2019 WL 2111830, at *3 (Tex. App.—Beaumont May 15, 2019, no pet.) (mem. op., not designated for publication) (citing *Moore v. State*, 520 S.W.3d 906, 908 (Tex. Crim. App. 2017)). "[W]e consider factors such as (1) intoxication; (2) speeding; (3) disregarding traffic signs and signals; (4) driving erratically; and (5) failure to control the vehicle." *Lee v. State*, No. 09-22-00163-CR, 2024 WL 3959227, at *7 (Tex. App.—Beaumont Aug. 28, 2024, pet. ref'd) (mem. op., not designated for publication).

Here, the evidence shows that Chukwujekwu was speeding, disregarded traffic signs and signals, and drove erratically. Chukwujekwu was driving well in excess of the speed limit on a highway with "medium[to] moderate" traffic. He disregarded several speed-limit signs and traffic laws by weaving in and out of the highway lanes while passing traffic without using a turn signal. Duenas testified, and the dash-camera footage confirms, that Chukwujekwu's driving was unsafe and that he narrowly missed a silver SUV while cutting it off to swerve over to the left lane. Moreover, "[i]t is established that others being placed in actual danger includes peace officers." *Clark*, 573 S.W.3d at 374. Here, Duenas testified, and dash-camera footage shows, that a deputy jumped over a barrier to deploy a spike strip in the HOV lane and had to

immediately jump back over to avoid the possibility of getting hurt when the stolen BMW's wheels hit the spike strip. That demonstrated that the deputy was in a zone of danger.

Viewing the evidence in the light most favorable to the verdict, we conclude that any rational jury could find, beyond a reasonable doubt, that the manner in which Chukwujekwu used his motor vehicle when evading arrest was capable of causing death or serious bodily injury. Consequently, we overrule his sole point of error.

III. Conclusion

We affirm the trial court's judgment.

Charles van Cleef
Justice

Date Submitted: October 28, 2026
Date Decided: November 12, 2026

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